

Minor – 2 Questions

1. Composition of Parliament & Comparison between Rajya Sabha and Lok Sabha

Composition of Parliament:

The Parliament of India consists of:

1. **President of India**
2. **Rajya Sabha (Council of States)**
3. **Lok Sabha (House of the People)**

Comparison between Rajya Sabha & Lok Sabha:

Comparison between Rajya Sabha & Lok Sabha:

Feature	Rajya Sabha	Lok Sabha
Type	Upper House	Lower House
Maximum Members	250 (238 elected + 12 nominated)	552 (530 from States, 20 from UTs, 2 nominated)
Tenure	Permanent body; 1/3rd members retire every 2 years	5 years (unless dissolved earlier)
Head	Vice President (Chairman)	Speaker
Powers	Limited in financial matters	Greater powers in money and confidence motions
Representation	Represents States and Union Territories	Represents People directly

CIPE, EVS AND CYBER LAWS

2. National Commission for Scheduled Castes (NCSC)

Constitutional Basis:

Established under **Article 338** of the Indian Constitution.

Composition:

- Chairperson
- Vice-Chairperson
- 3 other members
(Appointed by the President of India)

Functions:

1. Investigate matters relating to safeguards for SCs.
2. Inquire into specific complaints of deprivation of rights.
3. Advise the government on socio-economic development of SCs.
4. Present annual reports to the President.
5. Participate and advise in planning process for SC welfare.

Significance:

It acts as a **watchdog for SC rights** ensuring social justice and equality.

3. Powers and Functions of the President as Head of the Union Government

The President of India is the **constitutional head** (Article 52–78).

Executive Powers:

- Appoints the Prime Minister, Ministers, Governors, Judges, etc.
- Administers Union Territories through Lt. Governors.

Legislative Powers:

- Summons, prorogues, and dissolves Parliament.
- Gives assent to Bills.
- Can issue **Ordinances** (Article 123) when Parliament is not in session.

Judicial Powers:

- Grants **pardon, reprieve, respite, or remission** of punishment (Article 72).

Financial Powers:

- All money bills require prior Presidential recommendation.
- Causes the **Union Budget** to be laid before Parliament.

Emergency Powers:

- Can proclaim **National, State, or Financial Emergencies**.
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CIPE, EVS AND CYBER LAWS

4. Powers and Functions of Chief Minister

The **Chief Minister (CM)** is the real executive head of the state government.

1. Executive Powers:

- Allocates portfolios among ministers.
- Advises Governor on appointment/dismissal of ministers.
- Supervises state administration.

2. Legislative Powers:

- Leader of Legislative Assembly.
- Advises Governor on summoning/dissolving Assembly.
- Plays a key role in making laws.

3. Financial Powers:

- Guides preparation and presentation of the State Budget.

4. Relationship with Governor:

- Acts as a link between Governor and Council of Ministers.

In short:

The CM is the **chief architect of state policy and governance**.

5. Election Commission and Free & Fair Elections

Constitutional Provision:

Article **324** provides for an **Election Commission of India (ECI)**.

Composition:

- Chief Election Commissioner (CEC)
- Two Election Commissioners

Measures to ensure Free & Fair Elections:

1. **Independent Body** – not under government control.
2. **Preparation of Electoral Rolls** – ensures accuracy.
3. **Model Code of Conduct** – regulates political behavior.
4. **Electronic Voting Machines (EVMs)** – prevent malpractices.
5. **Observers and Flying Squads** – monitor election process.
6. **Transparency in Funding & Campaigning**.

Result:

Ensures **unbiased, corruption-free, and democratic elections**.

CIPE, EVS AND CYBER LAWS

6. Amendment of the Constitution and Procedure

Meaning:

An **amendment** means a formal change or addition to the Constitution.

Article 368 provides the procedure for amendment.

Types of Amendments:

1. **By Simple Majority** – e.g., creation of new states.
2. **By Special Majority** – majority of total membership and 2/3rd of members present & voting.
3. **By Special Majority + State Ratification** – e.g., changes affecting federal structure (ratified by ½ of the state legislatures).

Examples:

- 42nd Amendment (1976): Added Fundamental Duties.
 - 73rd & 74th Amendments: Panchayati Raj & Urban Local Bodies.
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7. Powers, Jurisdiction & Qualifications of Supreme Court Judges

Constitutional Basis: Article 124–147.

Qualifications for Judges:

- Citizen of India
- At least 5 years as High Court Judge, or
- 10 years as High Court Advocate, or
- Distinguished Jurist (in President's opinion)

Powers & Jurisdiction:

1. **Original Jurisdiction:**
 - Disputes between Union & States.
 2. **Appellate Jurisdiction:**
 - Appeals from High Courts in civil, criminal, or constitutional cases.
 3. **Advisory Jurisdiction (Art. 143):**
 - President may seek advice of the Court.
 4. **Judicial Review:**
 - Can declare laws unconstitutional.
 5. **Guardian of the Constitution:**
 - Protects Fundamental Rights.
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CIPE, EVS AND CYBER LAWS

8. Kinds of Emergency under the Constitution

Articles 352, 356, and 360

1. **National Emergency (Art. 352):**
 - Due to war, external aggression, or armed rebellion.
 - Effect: Centre gains control over states.
2. **State Emergency / President's Rule (Art. 356):**
 - When state government fails to function as per Constitution.
3. **Financial Emergency (Art. 360):**
 - When financial stability is threatened.
 - Salaries and expenditure may be reduced.

Purpose:

To safeguard the integrity, stability, and unity of India.

9. Constitutional Provisions for Protection of Environment

Key Articles:

1. **Article 48A (Directive Principle):**
 - State shall protect and improve the environment and safeguard forests and wildlife.
2. **Article 51A(g) (Fundamental Duty):**
 - Every citizen must protect the natural environment.
3. **Article 21 (Right to Life):**
 - Interpreted by Supreme Court to include the **Right to a Healthy Environment**.
4. **Article 253:**
 - Parliament can make laws for implementing international environmental agreements.

Acts Related:

- Environment (Protection) Act, 1986
- Water Act, 1974
- Air Act, 1981

Conclusion:

The Constitution integrates **environmental protection** as a duty of both **citizens and the state**.
